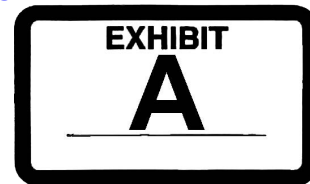


No. 20-12897



**THE UNITED STATES COURT OF APPEALS
FOR THE ELEVENTH CIRCUIT**

DEEPGULF, INC. AND TOKE OIL AND GAS, S.A.

Plaintiff/ Appellant,

v.

MARC MOSZKOWSKI,

Defendant /Appellee

On Appeal from the United States District Court for the Northern District of
Florida, Pensacola Division

Case No. 3: 18-cv-01466-TKW-MJF

**APPELLEE'S RESPONSE AND POSITION REGARDING THE
JURISDICTIONAL QUESTION SET FORTH ON 13 OCTOBER 2020**

27 October 2020

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Certificate of Interested Persons

(Pursuant to Federal Rules of Appellate Procedure, Rule 26-1 and 28, & FRAP 26.1)

1. Ball, Jr., Braden K., 40 Palafox Place, Suite 300, Pensacola, FL 32502, Attorney for Appellants
2. Boller, Mary Allie E., 150 Government Street, Suite 1001, Mobile, AL 36602, Former Attorney for Appellee
3. Boller, Thomas R., 150 Government Street, Suite 1001, Mobile, AL 36602, Former Attorney for Appellee
4. DeepGulf, Inc., 431 East Zaragoza Street, Unit B, Pensacola, FL 32502, Appellant
5. Frank, Michael, 1 North Palafox, Pensacola, FL 32502, Magistrate Judge, U.S. District Court for the Northern District of Florida
6. Litvak Beasley Wilson & Ball, LLP, 40 Palafox Place, Suite 300, Pensacola, FL 32502, Law Firm for Appellant's Counsel
7. Moszkowski, Marc, Le Verdos, 83300 Châteaudouble, France, Appellee
8. Thomas R. Boller, P.C., 150 Government Street, Suite 1001, Mobile, AL 36602, Former Law Firm for Appellee's Former Counsel
9. Wetherell, T. Kent, District Court Judge, 1 North Palafox, Pensacola, FL 32502, U.S. District Court for the Northern District of Florida.

Appellee's Response

In his U.S. District Court pleadings and in his direct correspondence with Appellant, *Pro Se* Appellee repeatedly stated his concerns regarding the Court's jurisdiction on at least 8 instances since September 2018.

The foreign national and foreign resident Appellee had promptly acknowledged Appellant's Florida Circuit Court lawsuit and removed it to U.S. District Court on 25 June 2018, within 20 days of the summons being served to him, pursuant to 28 U.S. Code §1332 and 1441¹.

Appellee was granted an enlargement of time by the Court and filed his Answer on 22 August 2018.

In the few weeks following his Answer to the lawsuit, *Pro Se* Appellee soon became aware of serious jurisdictional issues, not only because of the diversity of citizenship, but also because the co-Plaintiff /Appellant referred to in the complaint

¹ The U.S. District Court had original jurisdiction over the State Court action under 28 U.S. Code §1332 and the State Court action was one which may be removed to U.S. District Court by Defendant/Appellee pursuant to the provisions of 28 U.S.C. §1441(b) in that it was a civil action between a citizen of a state and a citizen of a foreign state and the matter in controversy exceeded the sum of \$75,000, exclusive of interest and costs.

as "Toke Oil & Gas, Inc." never existed, while "Toke Oil & Gas S.A." had ceased to exist around 2013.

Appellee started addressing the issues on 17 September 2018, both in his filings and his direct correspondence with Appellant, but to no avail.

Despite Appellee's recurrent requests, Appellant never produced any evidence regarding:

- a. The current continued and uninterrupted legal existence of foreign Appellant Toke Oil & Gas S.A.²;
- b. If Toke Oil & Gas S.A. still had legal existence, the domicile in East Timor of Appellant Toke Oil & Gas S.A.;
- c. If Toke Oil & Gas S.A. still had legal existence, the jurisdiction of a United States Federal or State Court over a foreign commercial entity, the business of which was strictly foreign;
- d. The jurisdiction of a United States Federal or State Court over a foreign national who resides in a foreign country³.

² Toke Oil & Gas S.A. has been legally extinct since at least 2013, and it was not in conformity with East Timorese legal requirements. Plaintiff / Appellant Toke Oil & Gas S.A. has had no legal existence since.

- e. The jurisdiction of a United States Federal or State Court over a foreign commercial entity, the business of which is strictly foreign, which sues in a United States Federal or State Court a foreign national who resides in a foreign country³.

Following are 8 of the Appellee's statements about his position regarding the jurisdictional matter, which he made in his pleadings since 17 September 2018:

I. In Defendant's Replies To Plaintiffs' Statements, Consequences

Thereof, And Conflict Of Interest (Docket 19), 17 September 2018, page 2/4

2. JURISDICTION OF THE COURT

Notwithstanding the fact that the Plaintiffs' attorney's statement of September 7, 2018 contradicts both his own complaint and corporate history, the jurisdiction of the U.S. District Court is hereby respectfully called into question, since Plaintiff Toke Oil and Gas, if it existed, would be a foreign corporation doing business exclusively in

³ Appellee resides in a foreign country chiefly because Appellant prevented Appellee from being allowed by the U.S. Government to reside in the United States

a foreign country and suing in U.S. Court a foreign national residing in a foreign country.

**II. In Defendant's Statement Supplementing His Answer And Defenses
Prior To The Conference Of Parties (Docket 27), 24 September 2018,
page 1/10**

1. Jurisdiction of the Court

Plaintiff Toke Oil and Gas S.A., whose identity has finally been confirmed by the Plaintiffs as that of a foreign corporation (although its address is described in the summons as being the private domicile of Plaintiff DeepGulf, Inc.'s Chairman of the Board in Pensacola, Florida), is extinct as far as the Defendant is aware, operated exclusively in a foreign country, and is suing the Defendant, who is a foreign national residing in a foreign country, in a United States Court. The jurisdiction of the United States Court is hereby respectfully called into question.

**III. In Defendant first request for production of documents, 28 November
2018, page 9/15**

37. Evidence, if any, that the Court has jurisdiction over Plaintiff Toke Oil and Gas S.A.'s complaint. Plaintiff Toke Oil and Gas S.A., whose identity has finally been confirmed by the Plaintiffs as that of a foreign corporation (although its address is described in the summons as being the private domicile of Plaintiff DeepGulf, Inc.'s Chairman of

the Board in Pensacola, Florida), is extinct as far as the Defendant is aware, operated exclusively in a foreign country, but is suing the Defendant, who is a foreign national residing in a foreign country, in a United States Court;

IV. In Defendant's Response And Memorandum In Opposition To Plaintiffs' Motion To Compel Defendant To Produce Initial Disclosures, Appear Personally At Deposition And To Appear Personally At Mediation (Docket 33), 30 December 2018, page 2/16

D. More urgent issues exist, particularly with regard to (1) the nonexistence of one of the Plaintiffs; (2) the jurisdiction of a U.S. Court in a case involving a non-existent foreign company with no activity in the United States against a foreign Defendant residing overseas

V. In Defendant's Response And Memorandum In Opposition To Plaintiffs' Motion To Compel Defendant To Produce Initial Disclosures, Appear Personally At Deposition And To Appear Personally At Mediation (Docket 33), 30 December 2018, page 13/16

2. The jurisdiction of the United States Court in a case brought by an inexistent foreign Plaintiff with exclusively overseas operations suing in U.S. Court a foreign national residing overseas

VI. In Defendant's Comments In Opposition To Plaintiff's Responses To His First Request For Production Of Documents, 14 January 2019, page 2/50

It appears to the Defendant that: (a) the Plaintiffs were not able to provide a single piece of credible evidence behind their claims and accusations; (b) were unwilling to produce the company documents which the Defendant needs to support his defenses and counterclaim; and (c) were not able to produce proofs of compliance with company or legal rules such as the jurisdiction of this Court in a case involving a non-existent foreign company with business strictly overseas suing in a U.S. Court a foreign national who resides overseas.

VII. In Defendant's Comments In Opposition To Plaintiff's Responses To His First Request For Production Of Documents, 14 January 2019, page 29/50 and 30/50

The Defendant believes that the matter of the Court's jurisdiction is anything but irrelevant, and he does not see how the issue could be work product. The matter of the jurisdiction of the Court needs to be urgently addressed in the case of nonexistent Plaintiff Toke Oil and Gas S.A., a foreign entity with business strictly out of the United States, which is suing in U.S. Court a foreign national who resides overseas.

**VIII. In Defendant's Comments and Objections to Plaintiff's Replies of
January 24th, 2019 (Docket 41, Exhibit A), 25 January 2019, page 13/20**

37. Plaintiffs do not, or cannot, produce any evidence that the Court has jurisdiction over Plaintiff Toke Oil and Gas S.A.'s complaint, an issue that is however of paramount importance. The company is extinct, as far as the Defendant is aware, operated exclusively in a foreign country, but is suing the Defendant, who is a foreign national residing in a foreign country, in a United States Court.

Le Verdos, 27 October 2020



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RULE 32(g) CERTIFICATE OF TYPE-VOLUME COMPLIANCE

I HEREBY CERTIFY that this Response to Jurisdictional Question is produced in Arial 14-point type and contains 1,392 words, exclusive of those items set forth in Federal Rules of Appellate Procedure, Rule 32, Form of Briefs, Appendices, and Other Papers (f), in accordance with the type-volume limitations of Federal Rules of Appellate Procedure, Rule 32, Form of Briefs, Appendices, and Other Papers (g)(1).



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CERTIFICATE OF SERVICE

1 I HEREBY CERTIFY that I have, on this 27th day of October 2020, furnished a copy of the foregoing to the Appellant's Counsel, Braden K. Ball, via the Court's E-filing system.



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